

demurring party/moving party was ordered to file a declaration demonstrating compliance by March 9, 2026. As of 8:30 a.m. on March 12, 2026, no declaration showing compliance with the Court's February 18, 2026 order was filed. The Court therefore awards a **monetary sanction** of \$500 against GM and its counsel for failure to comply with the Court's February 18, 2026 order and the applicable meet and confer statutes in connection with the demurrer and motion to strike. The sanction shall be paid to the Court within 30 days of the date of this ruling.

17. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT FILED BY GENERAL MOTORS, LLC**

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a motion by General Motors LLC to strike portions of the complaint. For the reasons set forth, the motion is **denied**.

Background

The factual background of the case is addressed in the Court's tentative ruling on the related demurrer to the fraudulent concealment cause of action by General Motors LLC ("GM"). GM has also filed a motion to strike Plaintiffs' claim for punitive damages primarily on the basis that Plaintiffs' fraudulent concealment claim, the claim on which the prayer for punitive damages is based, is not adequately pleaded.

Legal Standards for Ruling on Motion to Strike Punitive Damages

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc. § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

A motion to strike is properly granted when a complaint fails to allege facts to state a prima facie claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-168.) Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) The statute by its terms is stated in the disjunctive, and pleading facts supporting any one of the grounds for punitive damages (oppression, fraud or malice) is sufficient. (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235

Cal.App.3d 1220, 1238-1239 [fraud alone sufficient for punitive damages].)

Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code § 3294(c)(3) [emphasis added].) Alleging an intentional tort alone is not enough to support a claim for punitive damages: "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves, supra*, 157 Cal.App.3d at 166.)

Analysis

The parties do not dispute that the only cause of action alleged in the complaint on which Plaintiff's claim for punitive damages is founded is the sixth cause of action for fraudulent concealment. (Opp. to MTS p. 3, ll. 14-15.) Allegations sufficient to support a claim for fraud based on concealment can support a claim for punitive damages. (Civ. Code § 3294(a) and (c)(3); *Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610 [the "pleading of fraud" is sufficient to state a claim for punitive damages, without allegations "that the fraud was motivated by the malicious desire to inflict injury"].)

The Court has concluded in connection with GM's demurrer that Plaintiff has pleaded facts sufficient to state a cause of action for fraudulent concealment, a form of fraud within the definition of the punitive damages statute that would permit recovery of punitive damages if the claim is proven by clear and convincing evidence.

Plaintiff alleges GM concealed the information regarding the engine defect and its inability to be repaired with for the purpose of maintaining its market power, enriching itself, and for competitive reasons. (Compl. ¶¶ 25, 82-90, 137-141.) Plaintiff alleges facts to support that GM concealed material information about serious engine defects in the 6.2L V8 engine affecting the safety of its vehicles, including the 2023 Tahoe, to induce Plaintiff and other consumers to buy the vehicles (parting with property) knowing that the vehicles were worth substantially less as a result of the defective engine which cannot be repaired, and knowing its conduct would cause financial loss or injury to Plaintiffs as a result. (Compl. ¶¶ 17-23, 25-27, 35-39 [including allegation that "at no time" was Plaintiff informed the vehicle Plaintiff purchased was equipped with the defective engine before it purchased the vehicle], 44 [neither GM nor any of its "agents, dealers, or representatives informed Plaintiff of the Defective Engine" at the time of Plaintiff's purchase], 45 [if Plaintiff had been informed, Plaintiff would not have bought the vehicle], 46-67 [GM's prior, exclusive, and superior knowledge of the engine defect], 69-72 [GM's marketing materials and ads relied on by Plaintiff omitting engine defect information], 73-77 [Plaintiff's actual and reasonable reliance and damage], 78-81 [GM's continued marketing with knowledge of engine defect and nondisclosure by GM, agents, dealers and representatives], 88, 89 [GM actively concealed information on the engine defect from consumers and GM's authorized dealerships], 135 [incorporating prior allegations], 136-141.)

Other allegations of the complaint regarding GM's knowledge of the defects and concealment of the alleged widespread problems with the defective engines in its vehicles, including the Tahoe, over many years and that GM intentionally sold its vehicles in conscious disregard for the rights or property interests of customers who would receive defective vehicles posing significant safety risks and would suffer injury. (Compl. ¶¶ 11-13, 16-19, 23, 24 [Defendants forced to acknowledge models equipped with defective engine "including the Vehicle, suffer from an inherent defect" (emphasis

added)], 25, 32-36, 40-43 [Plaintiff's presentation of vehicle for repair on multiple occasions and defect not fixed], 47-61 [TSBs and NHTSA complaints].)

While Plaintiffs may not ultimately be able to prove these allegations by clear and convincing evidence as Civil Code section 3294 requires, they allege sufficient facts to support a claim for punitive damages for purposes of a motion to strike. GM does not cite any authority that precludes Plaintiffs from asserting claims for both punitive damages and the Song-Beverly Act civil penalties at the pleading stage. (*See Clauson v. Superior Court, supra*, 67 Cal.App.4th at 1256.)

Conclusion and Ruling

In the Court's discretion, the motion to strike is therefore **denied**.

18. 9:00 AM CASE NUMBER: C25-02571

CASE NAME: FAN PEI KOUNG VS. JOSIANE PEREIRA

HEARING IN RE: APPLICATION TO VACATE PRELIMINARY INJUNCTION (SET PER ORDER FILED 2/4/2026)

FILED BY:

TENTATIVE RULING:

The Parties are ordered to appear remotely via zoom. Both parties are self-represented and the Court is not convinced that proper notices have been provided for the hearing on Respondent Josiane Pereira's Application to Vacate Preliminary Injunction. The Court also issues an order to show cause as to why venue is proper in Contra Costa County. The parties do not live in the State of California.

19. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION JUDGMENT FILED BY PLAINTIFFS

FILED BY: JFP-AG/SAN RAMON LLC A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Before the Court is Plaintiff JFP-AG/San Ramon, LLC, Plaintiff JFP-AG/Batesville, LLC, Plaintiff JFP-AG/Little Rock, LLC, Plaintiff JFP-AG/Springerville, LLC, Plaintiff JFP-AG/Tuscon, LLC, Plaintiff JFP-AG/Roswell, LLC, Plaintiff JFP-AG/Ruidoso, LLC, Plaintiff JFP-AG/Longview, LLC, and Plaintiff JFP-AG/Carthage, LLC (collectively, "Plaintiffs")'s motion for summary judgment, or in the alternative, summary adjudication. The Motion is opposed by Defendant RM Safe 15 Corp. and Defendant San Ramon Hannibal, LLC (collectively, "Defendants"). The Motion relates to Plaintiffs' Verified Amended Complaint ("VAC") for (1) declaratory relief, (2) reformation of contract (for mistake, fraud and inequitable conduct), and (3) reformation of contract (for failure of consideration).

As a threshold issue, Defendants argue that Plaintiffs Motion is untimely.

A motion for summary judgment must be "heard no later than 30 days before the date of trial." (CCP § 437c(a)(3).) Furthermore, notice of the motion must be "served on all other parties to the action at least 81 days before the time appointed for the hearing," with additional time if the motion is served other than by personal delivery. (CCP § 437c(a)(2).) Thirty days before the April 13, 2026 court trial is Saturday March 14th, and the next court day is Monday March 16th. Department 16's regular law and motion date is Wednesday and the hearing date immediately before the summary judgment hearing